DEVELOPMENT AGREEMENT

THIS DEVELOPMENT AGREEMENT (this "Agreement") is made and entered into effective as of the ____ day of _____, 2026 (the "Effective Date"), by and between **TI INVESTORS OF PLEASANT PRAIRIE HOLDING COMPANY LLC**, a Wisconsin limited liability company (the "Developer") and the **VILLAGE OF PLEASANT PRAIRIE**, a Wisconsin municipal corporation (the "Village").

RECITALS

WHEREAS, the Village desires to encourage development and expand the tax base within the Village; and

WHEREAS, the Developer is the owner of real property located within the Village, comprised of three (3) separate parcels, each as more particularly described on **Exhibit A** (collectively referred to as the "Property"); and

WHEREAS, the Property is located within the boundaries of the Village's Tax Incremental District No. 12 ("TID No. 12") and pursuant to Section 66.1105, Wis. Stats. (the "Tax Increment Law"), the Village adopted a plan for development within TID No. 12 (the "Project Plan"); and

WHEREAS, subject to obtaining the benefits set forth herein, the Developer intends to develop the Property in three (3) Phases to include the construction of up to four (4) small to mid-sized industrial facilities with the flexibility to accommodate a mix of manufacturing and distribution-oriented businesses and related infrastructure including grading and sitework and the construction/extension of utilities to serve these facilities (collectively, the "Project"). Phase A of the Project shall be constructed on the Phase A Property and consist of one (1) industrial building and new private infrastructure, as depicted on the preliminary site plan showing the projected future development on the Property attached hereto as **Exhibit B** (the "Preliminary Development Plan"). Phase B of the Project shall be constructed on the Phase B Property and consist of up to two (2) industrial buildings and new private infrastructure, as depicted on the Preliminary Development Plan. Phase C of the Project shall be constructed on the Phase C Property and consist of one (1) industrial building and new private infrastructure, as depicted on the Preliminary Development Plan; and

WHEREAS, the Village has determined that the development of the Project would not occur without the incentives to be provided to the Developer as set forth in this Agreement; and

WHEREAS, the Village has determined that the development of the Project pursuant to this Agreement and the fulfillment generally of this Agreement by the parties hereto are in the best interest of the Village and its residents; will support jobs benefitting the residents of the Village and the surrounding communities; will increase the value of taxable property within TID No. 12; will enhance the value of other properties in the Village; will promote the orderly development of the Property in accordance with the Village's Comprehensive Plan for growth and development adopted by the Village; and are in accord with the public purposes and conditions of the applicable

state and local laws and requirements under which the Project Plan has been undertaken and is being carried out; and

WHEREAS, the Developer has filed, or will file, with the Village the plans, specifications, documents, and exhibits for the Project (collectively, the "Plans and Specifications"), as required by the Village, for the development of the Project, it being acknowledged that the Project shall not proceed without Village approval of the Plans and Specifications and that some of the foregoing may be submitted for approval after execution of this Agreement; and

NOW, THEREFORE, in consideration of the foregoing Recitals and the mutual promises and obligations set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

ARTICLE I
DEFINITIONS

Section 1.1 Definitions. In addition to the words and terms elsewhere defined in this Agreement, the following words and terms when used in this Agreement shall have the following meanings:

"Administrative Costs" means all costs reasonably paid or incurred by the Village related to the Project and for the administration of TID No. 12 as it directly relates to the Project. Administrative Costs may include, but are not limited to, planning and engineering billable time, attorneys' fees, inspection fees, and any other consulting fees as it relates to the Project.

"Base Value" means the tax incremental base of the Property as assessed by the Village when the Property was added to TID No. 12. The Base Value of the Phase A Property shall be $1,057,800.00, the Base Value of the Phase B Property shall be $72,300.00, and the Base Value of the Phase C Property shall be $2,264,400.00.

"Incremental TIF Revenues" means the real property tax revenues generated by the Property in excess of tax revenues generated by the Base Value of the Property in a calendar year. For avoidance of doubt, Incremental TIF Revenues does not include real property taxes paid on the Base Value of the Property.

"Phase A Property" means Parcel 9 CSM #2273 (aka Nitto site, 92-4-122-272-0502).

"Phase B Property" means Lot 83-103 (92-4-122-321-0165).

"Phase C Property" means Lot 60 (92-4-122-281-0230, 92-4-122-281-0260).

"Phase A Excess Tax Increment" means the Incremental TIF Revenues generated on the Phase A Property less Administrative Costs.

"Phase B Excess Tax Increment" means the Incremental TIF Revenues generated on the Phase B Property less Administrative Costs.

"Phase C Excess Tax Increment" means the Incremental TIF Revenues generated on the Phase C Property less Administrative Costs.

"Substantial Completion" and "Substantially Complete" means completion of the applicable construction work described in this Agreement as to a respective Phase or Phases, in accordance with the respective final Plans and Specifications and/or building permits and in compliance with applicable laws, such that remaining work to be completed consists only of minor punch list items.

"Village Board" means the Village Board of Trustees of the Village of Pleasant Prairie.

ARTICLE II
REPRESENTATIONS AND WARRANTIES OF THE DEVELOPER

Section 2.1 Representations of the Developer. The Developer represents and warrants that the following are true to the best of the Developer's knowledge at the time of execution of this Agreement:

(1) The Developer is in good standing and is authorized to conduct business in the State of Wisconsin.

(2) The Developer will cause the Project to be constructed in accordance with the terms and conditions of this Agreement, the Plans and Specifications, and all local, state, and federal ordinances, laws, and regulations.

(3) The implementation of the Project would not be undertaken by the Developer, and, in the opinion of the Developer, would not be economically feasible within the reasonably foreseeable future, without the assistance to the Developer by the Village as provided for in this Agreement.

(4) The Developer will use its commercially reasonable and diligent efforts to obtain, or cause to be obtained, in a timely manner, all required permits, licenses, and approvals for the Project and pay any associated fees, and will comply, in a timely manner, with all ordinances, laws, and regulations including local, county, state, and federal which must be met before the Project may be lawfully implemented.

(5) Neither the execution and delivery of this Agreement, the consummation of the transactions contemplated by this Agreement, nor the fulfillment of or compliance with the terms and conditions of this Agreement is prevented, limited by, conflicts with or results in the breach of, the terms, conditions, or provisions of any contractual restriction, evidence of indebtedness, agreement or instrument of whatever nature to which the Developer is now a party or by which it is bound, or constitutes a default under any of the foregoing.

(6) The execution, delivery, and the consummation of the transactions contemplated by this Agreement have been duly authorized and approved by the Developer and no other or further acts of the Developer are necessary. This Agreement constitutes the legal, valid, and

binding agreement and obligations of the Developer, enforceable against it in accordance with its respective terms.

(7) There are no lawsuits filed or pending, or to the knowledge of the Developer, threatened against the Developer that may in any way jeopardize or materially and adversely affect the ability of the Developer to perform its obligations hereunder.

(8) The Developer is not exempt from real estate taxes, and hereby warrants for the time of Developer's ownership of the Property that no portion of such Property shall become exempt from real estate taxes in whole or in part, without the prior written consent of the Village, and upon such other terms and conditions as are set forth in the attached Tax Agreements described in Section 3.1(2) (the "Tax-Exempt Covenant").

Section 2.2 Representations of the Village. The Village represents and warrants that the following are true to the best of the Village's knowledge at the time of execution of this Agreement:

(1) The Village is a municipal corporation of the State of Wisconsin and has the power to enter into this Agreement and carry out its obligations hereunder.

(2) On April 22, 2024, the Village Board adopted Resolution No. 24-23 which adopted the Project Plan and created TID No. 12.

(3) Neither the execution and delivery of this Agreement, the consummation of the transactions contemplated hereby, nor the fulfillment of or compliance with the terms and conditions of this Agreement is prevented, limited by or conflicts with or results in the breach of, the terms, conditions or provision of any law, ordinance, charter, contractual restriction, evidence of indebtedness, agreement or instrument of whatever nature to which the Village is now a party or by which it is bound, or constitutes a default under any of the foregoing

(4) The execution, delivery and the consummation of the transactions contemplated hereby have been duly authorized and approved by the Village and no other or further acts or proceedings of the Village are necessary. This Agreement constitutes the legal, valid, and binding agreement and obligations of the Village, enforceable against it in accordance with its respective terms, except as enforceability thereof may be limited by applicable law and by general principles of equity

(5) All economic constraints, needs, limitations as set forth in the foregoing Recitals are incorporated and adopted herein as though fully set forth and the Village represents that it has considered the requirements under Wisconsin law relating to municipal assistance and that it has conferred with legal counsel and it has determined that but for the assistance hereinafter set forth, the Project would not be economically feasible.

ARTICLE III
UNDERTAKINGS BY DEVELOPER AND VILLAGE

Section 3.1 Developer Obligations.

(1) Develop the Project in three (3) separate phases (each, a "Phase" and collectively, the "Phases") at the Developer's sole cost, in accordance with this Agreement and the Plans and Specifications as filed and approved in final form by the Village. Subject to the requirements in this Agreement and in particular Section 4.5, the Developer may develop the second and third Phases in any order in its sole discretion and is not required to develop these Phases in sequential order.

(2) Developer shall execute and deliver to the Village for recording with the Kenosha County Register of Deeds a separate Tax Agreement for each Phase of the Project, attached hereto and incorporated herein as **Exhibits C1, C2, and C3**, respectively. The Tax Agreements shall run with the Property and bind all owners in title to the Property during the term of the Tax Agreements.

Section 3.2 Village Obligations. Subject to satisfaction of the conditions set forth in this Agreement, the Village shall perform the following:

(1) Make reasonable efforts to assist the Developer in obtaining all permits, approvals, variances, licenses, certificates, inspections and consents from the Village that may be necessary or desirable to enable the Developer to complete the Project

(2) Subject to Article IV of this Agreement, provide a development incentive to the Developer in the form of three (3) separate Municipal Revenue Obligations (defined below), each attributable to a Phase of the Project, as specified in Article IV herein.

ARTICLE IV
DEVELOPMENT INCENTIVE GRANT – MUNICIPAL REVENUE OBLIGAITON; ASSESSED VALUATION GUARANTEES

Section 4.1 Phase A Municipal Revenue Obligation. Subject to Section 4.5 and the requirements under Section 4.1(6), upon Substantial Completion of Phase A, and within forty-five (45) days after submittal of a written request from the Developer, the Village shall issue a Phase A Municipal Revenue Obligation to the Developer as a development incentive and to reimburse certain eligible project costs in the principal amount of up to $654,462.00, plus interest at a rate of five percent (5%) per annum. The Phase A Municipal Revenue Obligation shall be payable to the Developer on each Payment Date (as defined below) in equal annual installments of $76,325.00 each year for twelve (12) years. The Village's obligations under this Section shall be subject to the following terms and conditions.

(1) Any payment of the Phase A Municipal Revenue Obligation shall be payable solely from and only to the extent that the Village has received, as of such Payment Date, and after issuance of the Phase A Municipal Revenue Obligation, Phase A Excess Tax Increment. A sufficient portion of Phase A Excess Tax Increment to service the Phase A Municipal Revenue

Obligation shall be appropriated annually by the Village to payment of the Phase A Municipal Revenue Obligation.

(2) For purposes of the Phase A Municipal Revenue Obligation, a "Payment Date" shall mean September 15 of each year during the payment term above.

(3) If the Phase A Municipal Revenue Obligation is issued to the Developer by the Village under this Agreement, the Village covenants and agrees that TID No. 12 shall not be terminated prior to the final payment of the Phase A Municipal Revenue Obligation or prepayment of the Phase A Municipal Revenue Obligation under Section 4.4.

(4) The Phase A Municipal Revenue Obligation nor the Phase A Excess Tax Increment shall not be used or applied, in whole or in part, to the payment or reimbursement of any real, personal or other property taxes.

(5) The Phase A Municipal Revenue Obligation payments shall not be included in the computation of the Village's constitutional debt limitation, because the Phase A Municipal Revenue Obligation payments are limited and conditional, and no taxes have been or will be levied for its payment or other taxes pledged to its payment. Nothing in this Agreement shall be deemed to change the nature of Village's obligation from a limited and conditional obligation to a general obligation.

(6) The Developer guarantees that as of Substantial Completion of Phase A of the Project and for each calendar year thereafter during the term of TID No. 12 or a successor TID that includes the Phase A Property, the assessed valuation of the Phase A Property for real property tax purposes (the "Phase A Assessed Value") shall not be less than $11,297,400.00 (the "Phase A Guaranteed Value"). If in any year until the Phase A Municipal Revenue Obligation is paid in full the Phase A Assessed Value is less than the Phase A Guaranteed Value, then, the Village shall withhold the annual payment under the Phase A Municipal Revenue Obligation due in such year. This assessed value guaranty shall constitute a covenant running with the land, binding upon any and all owners of the Phase A Property and their successors and assigns, including any mortgagee that acquires title through foreclosure or a deed in lieu thereof, and any purchase or assignee of such mortgagee.

Section 4.2 Phase B Municipal Revenue Obligation. Subject to Section 4.5 and the requirements under Section 4.2(6), upon Substantial Completion of Phase B, and within forty-five (45) days after submittal of a written request from the Developer, the Village shall issue a Phase B Municipal Revenue Obligation to the Developer as a development incentive and to reimburse certain eligible project costs in the principal amount of up to $1,682,899.00, plus interest at a rate of five percent (5%) per annum. The Phase B Municipal Revenue Obligation shall be payable to the Developer on each Payment Date (as defined below) in equal annual installments of $196,265.00 each year for twelve (12) years. The Village's obligations under this Section shall be subject to the following terms and conditions.

(1) Any payment of the Phase B Municipal Revenue Obligation shall be payable solely from and only to the extent that the Village has received, as of such Payment Date, and after

issuance of the Phase B Municipal Revenue Obligation, Phase B Excess Tax Increment. A sufficient portion of Phase B Excess Tax Increment to service the Phase B Municipal Revenue Obligation shall be appropriated annually by the Village to payment of the Phase B Municipal Revenue Obligation.

(2) For purposes of the Phase B Municipal Revenue Obligation, a "Payment Date" shall mean September 15 of each year during the payment term above.

(3) If the Phase B Municipal Revenue Obligation is issued to the Developer by the Village under this Agreement, the Village covenants and agrees that TID No. 12 shall not be terminated prior to the final payment of the Phase B Municipal Revenue Obligation or prepayment of the Phase B Municipal Revenue Obligation under Section 4.4.

(4) The Phase B Municipal Revenue Obligation nor the Phase B Excess Tax Increment shall not be used or applied, in whole or in part, to the payment or reimbursement of any real, personal or other property taxes.

(5) The Phase B Municipal Revenue Obligation payments shall not be included in the computation of the Village's constitutional debt limitation, because the Phase B Municipal Revenue Obligation payments are limited and conditional, and no taxes have been or will be levied for its payment or other taxes pledged to its payment. Nothing in this Agreement shall be deemed to change the nature of Village's obligation from a limited and conditional obligation to a general obligation.

(6) The Developer guarantees that as of Substantial Completion of Phase B of the Project and for each calendar year thereafter during the term of TID No. 12 or a successor TID that includes the Phase B Property, the assessed valuation of the Phase B Property for real property tax purposes (the "Phase B Assessed Value") shall not be less than $22,838,000.00 (the "Phase B Guaranteed Value"). If in any year until the Phase B Municipal Revenue Obligation is paid in full the Phase B Assessed Value is less than the Phase B Guaranteed Value, then, the Village shall withhold the annual payment under the Phase B Municipal Revenue Obligation due in such year. This assessed value guaranty shall constitute a covenant running with the land, binding upon any and all owners of the Phase B Property and their successors and assigns, including any mortgagee that acquires title through foreclosure or a deed in lieu thereof, and any purchase or assignee of such mortgagee.

Section 4.3 Phase C Municipal Revenue Obligation. Subject to Section 4.5 and the requirements under Section 4.3(6), upon Substantial Completion of Phase C, and within forty-five (45) days after submittal of a written request from the Developer, the Village shall issue a Phase C Municipal Revenue Obligation to the Developer as a development incentive and to reimburse certain eligible project costs in the principal amount of up to $1,162,639.00, plus interest at a rate of five percent (5%) per annum. The Phase C Municipal Revenue Obligation shall be payable to the Developer on each Payment Date (as defined below) in equal annual installments of $135,591.00 each year for twelve (12) years. The Village's obligations under this Section shall be subject to the following terms and conditions

(1) Any payment of the Phase C Municipal Revenue Obligation shall be payable solely from and only to the extent that the Village has received, as of such Payment Date, and after issuance of the Phase C Municipal Revenue Obligation, Phase C Excess Tax Increment. A sufficient portion of Phase C Excess Tax Increment to service the Phase C Municipal Revenue Obligation shall be appropriated annually by the Village to payment of the Phase C Municipal Revenue Obligation.

(2) For purposes of the Phase C Municipal Revenue Obligation, a "Payment Date" shall mean September 15 of each year during the payment term above.

(3) If the Phase C Municipal Revenue Obligation is issued to the Developer by the Village under this Agreement, the Village covenants and agrees that TID No. 12 shall not be terminated prior to the final payment of the Phase C Municipal Revenue Obligation or prepayment of the Phase C Municipal Revenue Obligation under Section 4.4.

(4) The Phase C Municipal Revenue Obligation nor the Phase C Excess Tax Increment shall not be used or applied, in whole or in part, to the payment or reimbursement of any real, personal or other property taxes.

(5) The Phase C Municipal Revenue Obligation payments shall not be included in the computation of the Village's constitutional debt limitation, because the Phase C Municipal Revenue Obligation payments are limited and conditional, and no taxes have been or will be levied for its payment or other taxes pledged to its payment. Nothing in this Agreement shall be deemed to change the nature of Village's obligation from a limited and conditional obligation to a general obligation.

(6) The Developer guarantees that as of Substantial Completion of Phase C of the Project and for each calendar year thereafter during the term of TID No. 12 or a successor TID that includes the Phase C Property, the assessed valuation of the Phase C Property for real property tax purposes (the "Phase C Assessed Value") shall not be less than $17,480,000.00 (the "Phase C Guaranteed Value"). If in any year until the Phase C Municipal Revenue Obligation is paid in full the Phase C Assessed Value is less than the Phase C Guaranteed Value, then, the Village shall withhold the annual payment under the Phase C Municipal Revenue Obligation due in such year. This assessed value guaranty shall constitute a covenant running with the land, binding upon any and all owners of the Phase C Property and their successors and assigns, including any mortgagee that acquires title through foreclosure or a deed in lieu thereof, and any purchase or assignee of such mortgagee.

Section 4.4 Prepayment of Municipal Revenue Obligations. The Village may, in its sole discretion and without notice, penalty, or fee, prepay the then-present value of any of the Municipal Revenue Obligations (a "Prepayment") at any time after issuance, by prepaying the then-outstanding principal of the Municipal Revenue Obligation. Following Prepayment of a Municipal Revenue Obligation, the Village shall have no further obligations to the Developer for additional payments for the prepaid Municipal Revenue Obligation.

Section 4.5 Determination of Order of Phases of the Project; Effect on Municipal Revenue Obligations. The Developer shall Substantially Complete Phase A of the Project and meet the other requirements for the issuance of the Phase A Municipal Revenue Obligation under Section 4.1 by January 1, 2028. If these requirements are not both met by January 1, 2028, and if the Phase A Municipal Revenue Obligation is subsequently issued under this Agreement, the number of annual payments which the Village shall be obligated to make under the Phase A Municipal Revenue Obligation under Section 4.1 shall be reduced by one and shall be reduced by one additional annual payment for each subsequent January 1 upon which the Developer has not met these requirements. If the Developer has not Substantially Completed Phase A of the Project and met the other requirements for the issuance of the Phase A Municipal Revenue Obligation under Section 4.1 by January 1, 2033, the Village shall have no obligation to issue the Phase A Municipal Revenue Obligation and shall have no further obligation to the Developer with respect to Phase A of the Project.

The Developer shall notify the Village Community Development Director which of the remaining two Phases of the Project it will develop second by January 1, 2028 (the "Second Phase"), and if the Developer fails to do so the Phase of the Project that the Developer will be required to develop second shall be the remaining Phase with the highest Phase Guaranteed Value. The Developer shall Substantially Complete the Second Phase of the Project and meet the other requirements for the issuance of the Municipal Revenue Obligation applicable to the Second Phase under this Article IV by January 1, 2030. If these requirements are not both met by January 1, 2030, and if the Municipal Revenue Obligation applicable to the Second Phase is subsequently issued under this Agreement, the number of annual payments which the Village shall be obligated to make under the Municipal Revenue Obligation applicable to the Second Phase shall be reduced by one and shall be reduced by one additional annual payment for each subsequent January 1 upon which the Developer has not met these requirements. If the Developer has not Substantially Completed the Second Phase of the Project and met the other requirements for the issuance of the Municipal Revenue Obligation applicable to the Second Phase by January 1, 2035, the Village shall have no obligation to issue the Municipal Revenue Obligation applicable to the Second Phase and shall have no further obligation to the Developer with respect to the Second Phase of the Project.

The Developer the Developer shall Substantially Complete the third and final phase of the Project ("Third Phase") and meet the other requirements for the issuance of the Municipal Revenue Obligation applicable to the Third Phase under this Article IV by January 1, 2032. If these requirements are not both met by January 1, 2032, and if the Municipal Revenue Obligation applicable to the Third Phase is subsequently issued under this Agreement, the number of annual payments which the Village shall be obligated to make under the Municipal Revenue Obligation applicable to the Third Phase shall be reduced by one and shall be reduced by one additional annual payment for each subsequent January 1 upon which the Developer has not met these requirements. If the Developer has not Substantially Completed the Third Phase of the Project and met the other requirements for the issuance of the Municipal Revenue Obligation applicable to the Third Phase by January 1, 2037, the Village shall have no obligation to issue the Municipal Revenue Obligation applicable to the Third Phase and shall have no further obligation to the Developer with respect to the Third Phase of the Project.

Section 4.6 **Partial Release**. Upon request from Developer, with respect to any individual Phase of the Project, the Village shall execute an estoppel letter or a mutually agreeable recordable document applicable to such individual Phase, releasing the underlying real estate of the Phase from the Developer obligations of this Agreement that have been completed as of the date of request ("Partial Release"), however, such Partial Release shall not release the Tax-Exempt Covenant as to any Phase.

Section 4.7 **Consolidating Phase C Property.** Prior to the commencement of construction on the Phase C Property, Developer shall combine Parcel A and Parcel B of the Phase C Property, as more particularly described on **Exhibit A** attached hereto, into singular parcel.

ARTICLE V
WARRANTY, HOLD HARMLESS, AND INDEMNIFICATION

Section 5.1 **General.**

(a) THE DEVELOPER SHALL INDEMNIFY AND HOLD HARMLESS THE VILLAGE, ITS GOVERNING BODY MEMBERS, OFFICERS, AGENTS, INCLUDING THE INDEPENDENT CONTRACTORS, CONSULTANTS AND LEGAL COUNSEL, SERVANTS AND EMPLOYEES THEREOF (HEREINAFTER, FOR PURPOSES OF THIS SECTION COLLECTIVELY REFERRED TO AS THE "INDEMNIFIED PARTIES") FROM AND AGAINST ANY THIRD PARTY (INCLUDING BUT NOT LIMITED TO OTHER PROPERTY OWNERS, WISDNR, OR OTHER GOVERNMENTAL AUTHORITY (TOGETHER, "THIRD PARTY")) CLAIM, DEMAND, SUIT, LOSS OR DAMAGE TO PROPERTY, INJURY TO OR DEATH OF ANY PERSON ARISING OUT OF OR RESULTING FROM ANY BREACH OF ANY WARRANTY, COVENANT, OR AGREEMENT OF THE DEVELOPER OR ANY FAILURE OF DEVELOPER TO COMPLY WITH ANY STATUTE, LAW, OR ORDINANCE OR OTHER LEGAL REQUIREMENT UNDER THIS AGREEMENT.

(b) THE DEVELOPER SHALL PROTECT AND DEFEND THE INDEMNIFIED PARTIES FROM ANY THIRD PARTY CLAIM, DEMAND, SUIT, ACTION, OR OTHER THIRD PARTY PROCEEDINGS WHATSEOEVER ARISING OR PURPORTEDLY ARISING FROM THE ACTION OR INACTION OF THE DEVELOPER (OR OTHER PERSONS ACTING ON ITS BEHALF OR UNDER ITS DIRECTION OR CONTROL) UNDER THIS AGREEMENT, OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THE DEVELOPER'S ACQUISITION, CONSTRUCTION, INSTALLATION, OWNERSHIP AND OPERATION OF THE DEVELOPMENT PROJECT AND THE PROPERTY.

(c) THE PROVISIONS IN THIS SECTION SHALL APPLY NOTWITHSTANDING THE FACT THAT CLAIMS OF NEGLIGENCE AGAINST (OR SUITS, ACTIONS OR PROCEEDINGS ALLEGING NEGLIGENCE BY) THE INDEMNIFIED PARTIES ARE MADE OR DAMAGES OR LOSSES ARE FOUND BY A COURT OR ARBITRATOR TO HAVE BEEN CAUSED BY THE NEGLIGENCE OF THE INDEMNIFIED PARTIES. THE PROVISIONS OF THIS SECTION SHALL NOT APPLY IF WILLFUL ACTS OR GROSS NEGLIGENCE OF THE INDEMNFIED PARTIES ARE FOUND BY A COURT OR

ARBITRATOR TO HAVE CAUSED THE LOSS OR DAMAGES FROM WHICH THE INDEMNIFIED PARTIES ARE SEEKING TO BE INDEMNIFIED.

ARTICLE VI
FINANCIAL SECURITY

Section 6.1 The Developer shall deliver to the Village Treasurer, as a condition of the Village Board's approval of this Agreement, a cash deposit for financial security pursuant to s. 395-17 of the Village Ordinances ("Financial Security"), as a surety of performance by Developer of the installation of certain public watermain improvements along 108th Street and State Trunk Highway 31 in accordance with the plans and specifications attached hereto and incorporated herein as **Exhibit D** (the "Public Watermain Improvements"). The Developer shall complete the installation of the Public Watermain Improvements by no later than November 15, 2027. The Village may consider additional time for completion if there are reasons beyond the Developer's control and as accepted by the Village engineer. The Village shall be entitled to draw upon the Financial Security if the Developer fails to discharge its obligations related to the installation of the Public Watermain Improvements under s. 395-17 and this Agreement. The amount of any draw by the Village upon the Financial Security shall be based upon the Village's reasonable estimate of the cost of the goods or services required to be purchased or supplied to complete the Public Watermain Improvements.

Section 6.2 [Intentionally Omitted]

Section 6.3 The Developer may request reductions in the remaining balance of the Financial Security pursuant to s. 395-17 of the Village Ordinances.

Section 6.4 Notwithstanding anything to the contrary in this Agreement, in the event of a conflict between s. 395-17 of the Village Ordinances and Wisconsin Statutes Section 236.13(2)(am), Wisconsin Statutes Section 236.13(2)(am) shall control.

ARTICLE VII
MISCELLANEOUS REQUIREMENTS

Section 7.1 **Manner of Performance.** The Developer, at the Developer's cost, shall cause all construction obligations of the Developer referred to in this Agreement to be carried out and performed in a good and workmanlike manner, consistent with the Plans and Specifications and the Village Requirements.

Section 7.2 **Survey Monuments.** The Developer, at the Developer's cost, shall place and install on the Property all survey monuments required by the applicable Village Requirements and state law. The installation of such monuments shall be completed, to the reasonable satisfaction of the Village, by the Completion Date. The Developer shall promptly notify the Village in writing upon completion of survey monument installation.

Section 7.3 **Permits.** The Developer, at the Developer's cost, shall provide and submit to the Village valid copies of any and all governmental agency permits relating to the construction

of the Project. No occupancy permits shall be issued for the occupancy of any building or portion thereof on the Property until such time as final inspections are completed and passed by the building, fire and rescue, public works, engineering, and zoning inspectors.

Section 7.4 Debris. The Developer, at the Developer's cost, shall keep the Property free from litter and debris during all stages of grading and construction of the Project, and keep any adjacent lots free from litter and debris originating from the Property, during all times. The Developer shall remove and lawfully dispose of all tree trunks, limbs brush, and other rubbish and debris from the Property. Offsite sediment deposition occurring as a result of inclement weather shall be cleaned up by the end of the next work day following the occurrence. All other offsite sediment deposition occurring as a result of construction activities shall be cleaned up by the end of the work week.

Section 7.5 Right of Entry; Inspection. The Village shall have the right at any time and from time to time to enter upon the Property to perform any testing and inspections deemed necessary or appropriate by the Village.

Section 7.6 Planning and Engineering Fees, Attorneys' Fees, and Inspection Fees. The Developer shall pay all billed costs for time, fees, and other costs for planning and engineering activities, reviews, inspections, legal services and administrative services related to the Development. The Village shall provide the Developer with invoices which are due and payable to the Village specifying the work done and the charges for such work. Such invoices shall be paid throughout the duration of the development, construction, and inspection process.

ARTICLE VIII
REMEDIES

Section 8.1 Notice of Breach and Curative Action.

(1) If a party believes that the other party has breached its obligations under this Agreement, such party shall promptly provide notice to the other of the specific nature of the breach. If the Village reasonably believes that a breach poses an imminent threat to the public health or safety, the notice of breach shall so state.

(2) The breaching party shall have twenty (20) days from the date of receipt of the notice of breach to cure the breach; provided however, that curative activity shall be completed as soon as practical, and further provided that if curative activity is timely commenced and thereafter continuously and diligently pursued, the curing party shall have a reasonable period of time under the circumstances to complete its curative activity.

(3) Whenever a perceived breach of this Agreement is reasonably believed by either party to pose an imminent threat to public health or safety, the parties shall immediately confer in good faith as to how such threat can be most effectively and expeditiously eliminated.

(4) Notwithstanding any other language in this Agreement to the contrary, if the Village reasonably believes in good faith that commencement of a legal action, or the making of a

draw upon the Developer's Financial Security, or the performance of its own work with respect to curing a perceived breach prior to the commencement or completion of the Developer's curative action is immediately required to protect the public health or safety, the Village may proceed to do so.

ARTICLE IX
MISCELLANEOUS PROVISIONS

Section 9.1 **Counterparts.** This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

Section 9.2 **Construction.** The parties acknowledge and represent that this Agreement has been the subject of negotiation by all parties and that all parties together shall be construed to be the drafter hereof and this Agreement shall not be construed against any party individually as drafter.

Section 9.3 **Legal Relationship.** Nothing in this Agreement shall be construed to create an employer/employee relationship, joint employer or partnership relationship, or a principal/agent relationship.

Section 9.4 **Survival.** All agreements, representations, covenants, and warranties made herein shall survive the execution of this Agreement and the making of the grants hereunder. This Agreement shall be binding upon the parties and their respective successors and assigns.

Section 9.5 **No Waiver.** The failure of any party to require strict performance of any provision of this Agreement will not constitute a waiver of the provision or of any other of that party's rights under this Agreement. Rights and obligations under this Agreement may only be waived or modified in writing. A writing waiving a right must be signed by the party waiving such right. If an obligation of a party is being waived or released, the writing must be signed by the affected parties. Waiver of one right, or release of one obligation, will not constitute a waiver or release of any other right or obligation of any party. Waivers and releases shall affect only the specific right or obligation waived or released and will not affect the rights or obligations of any other party that did not sign the waiver or release.

Section 9.6 **Severability.** If any provision of this Agreement shall be held or declared to be invalid, illegal or unenforceable by reason of it being contrary to any applicable law, such provision shall be deemed to be deleted from this Agreement without impairing or prejudicing the validity, legality or enforceability of the remaining provisions.

Section 9.7 **Governing Law.** This Agreement shall be governed and construed in accordance with the laws of the State of Wisconsin.

Section 9.8 **Notices.** Except as otherwise expressly provided in this Agreement, all notices given or required in connection with this Agreement shall be in writing, shall specifically refer to this Agreement by title and date, and shall be addressed to the receiving party, and shall

be delivered personally, sent by prepaid United States Postal Service certified mail with return receipt requested, or by electronic mail with receipt confirmed, to all parties as follows:

If to the Village:

Village of Pleasant Prairie, Wisconsin
Attn: Robert Hanson, Community Development Director
9915 39th Avenue
Pleasant Prairie, WI 53158
Email: rhanson@pleasantprairiewi.gov

With a copy to:

Larry A. Konopacki
Stafford Rosenbaum LLP
222 West Washington Avenue, Suite 900
Madison, WI 53701-1784
Email: lkonopacki@staffordlaw.com

If to the Developer:

TI Investors of Pleasant Prairie Holding Company LLC
c/o Towne Realty, Inc.
710 N. Plankinton Ave., Ste. 1100
Milwaukee, WI 53203
Attn: Chad Navis
Phone number: (414) 274-2642
Email: Chad.navis@zilber.com

With a copy to:

Zilber Ltd.
710 N. Plankinton Avenue, Suite 1200
Milwaukee, WI 53203
Attn: Sandra J. DeLisle, Esq.
Phone number: (414) 274-2438
Email: sandi.delisle@zilber.com

Parties to this Agreement shall give fifteen (15) days' written notice of any change of mailing address, telephone, or electronic mail address. Failure to provide said notice may constitute a default by the party.

Section 9.9 Binding Agreement; Assignment. This Agreement shall be binding upon the parties and their successors, assigns, and heirs. The Developer's Lender may require the Developer to execute a collateral assignment of all or a portion of this Agreement, and Developer may seek to assign all or a portion of this Agreement to an entity under the same control as the Developer. Such assignment shall require notice to the Village prior to such assignment. Any other assignment of any part of this Agreement by the Developer or by any successor or assign of the Developer shall be subject to prior approval of the Village Board, which approval shall not be unreasonably withheld, conditioned or delayed. Any assignment of this Agreement will require the assignee to accept all obligations related to the portions of this Agreement sought to be assigned.

Section 9.10 Entire Agreement. This Agreement constitutes the entire agreement of the parties with respect to the matters herein contained. All prior agreements, commitments, promises, offers, representations, and statements made by or on behalf of the parties with respect to the subject matter in this Agreement are hereby replaced by this Agreement.

Section 9.11 Amendment. This Agreement may only be modified or amended by written agreement, duly authorized and signed by the Village and the Developer, their permitted successors or assigns.

Section 9.12 Personal Liability. In carrying out any of the provisions of this Agreement or in exercising any power or authority granted to them thereby, there shall be no personal liability of the Developer or Village officers, agents or employees, it being understood and agreed that in such matters they act as agents and representatives of the Developer or Village respectively.

Section 9.13 Force Majeure. Except with respect to Developer's obligation to notify the Village Community Development Director which of the remaining two Phases of the Project it will develop second under Section 4.5, in the event that the Developer or Village shall be delayed or hindered in or prevented from the performance of any act required hereunder by reason of epidemics, outbreaks, or pandemics, strikes, lockouts, labor troubles, inability to procure materials, delay in supply or delivery of materials or equipment, failure of power, fire, earth quake, flood, terrorism, war, acts of God, local, state or federal order, or other reason beyond Developer's or Village's reasonable control, then performance of such act shall be excused for the period of delay and the date for the performance of any such act shall be extended for a period equivalent to the period of such delay, prevention, or stoppage, however, Force Majeure shall never extend beyond a period of twelve (12) months and shall never excuse the failure to perform a financial obligation of either party. For avoidance of doubt, a delay caused by a Force Majeure event does not affect the reduction in the number of years of annual payments of a Municipal Revenue Obligation under Section 4.5.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date above indicated.

[Signature pages follow]

DEVELOPER:

TI INVESTORS OF PLEASANT PRAIRIE HOLDING COMPANY LLC
By: Towne Realty, Inc., manager

By:_____
Name:
Title:

STATE OF WISCONSIN)
) ss.
COUNTY OF MILWAUKEE)

Personally came before me this ____ day of _____, 2026 the above-named _____, the _____ of Towne Realty, Inc. and to me known to be the person who executed the foregoing instrument and acknowledged the same on behalf of the aforesaid limited liability company.

_____
Notary Public, State of _____
Commission:_____

VILLAGE:

VILLAGE OF PLEASANT PRAIRIE

By:_____
Name: David J. Klimisch
Title: Village President

By:_____
Name: Jane C. Snell
Title: Village Clerk

STATE OF WISCONSIN)
) ss.
COUNTY OF KENOSHA)

Personally came before me this ____ day of _____, 2026 the above-named David J. Klimisch and Jane C. Snell to me known to be the Village President and Village Clerk of the Village of Pleasant Prairie, Wisconsin, respectively, who executed the foregoing instrument and acknowledged the same on behalf of said municipal corporation.

_____
Notary Public, State of Wisconsin
Commission:_____

EXHIBIT LIST

Exhibit A – Legal Description of the Properties

Exhibit B – Preliminary Development Plan

Exhibit C1 – Tax Agreement – Phase A

Exhibit C2 – Tax Agreement – Phase B

Exhibit C3 – Tax Agreement – Phase C

Exhibit D – Public Watermain Infrastructure Plans

Exhibit D1 – Itemized Financial Security Cost Breakdown Schedule

Exhibit D2 -- Copy of the Financial Security Instrument for the Public Watermain Project

EXHIBIT A
LEGAL DESCRIPTION OF THE PROPERTIES

1. Phase A Property

Parcel Nine (9) of CERTIFIED SURVEY MAP NO. 2273, being a redivision of Lot One (1) of Certified Survey Map No. 1971, located in part of the Southwest One-quarter (1/4) of the Northwest One-quarter (1/4) of Section Twenty-seven (27) and in the Southeast One-quarter (1/4) of the Northeast One-quarter (1/4) of Section Twenty-eight (28), in Township One (1) North, Range Twenty-two (22) East, in the Village of Pleasant Prairie, Kenosha County, Wisconsin, recorded in the Office of the Register of Deeds for Kenosha County on October 18, 2001 as Document No. 1239083.

Tax Key No. 92-4-122-272-0502
Address: 108th Street

***Note: Tax Key Number and Address are shown for informational purposes only.*

2. Phase B Property

ALL THAT PART OF THE EAST HALF OF THE NORTHEAST QUARTER OF SECTION 32, TOWNSHIP 1 NORTH, RANGE 22 EAST OF THE FOURTH PRINCIPAL MERIDIAN, BOUNDED AND DESCRIBED AS FOLLOWS:

COMMENCING AT THE NORTHEAST CORNER OF SAID SECTION 32; THENCE SOUTH 89°55'52" WEST AND ALONG THE NORTH LINE OF THE NORTHEAST QUARTER OF SAID SECTION 32, 46.66 FEET TO THE WEST LINE OF COUNTY TRUNK HIGHWAY "H" RIGHT OF WAY; THENCE SOUTH 02°04'46" EAST ALONG THE SAID WEST LINE, 327.36 FEET TO THE POINT OF BEGINNING OF THE FOLLOWING DESCRIPTION; THENCE SOUTH 03°52'53" EAST AND ALONG THE WEST LINE OF COUNTY TRUNK HIGHWAY "H" RIGHT OF WAY, 473.83 FEET; THENCE SOUTH 02°40'20" EAST AND ALONG THE SAID WEST LINE, 1684.21 FEET; THENCE SOUTH 43°28'29" WEST, 175.89 FEET TO THE NORTH LINE OF COUNTY TRUNK HIGHWAY "ML" RIGHT OF WAY; THENCE SOUTH 89°37'19" WEST AND ALONG THE SAID NORTH LINE, 1061.47 FEET TO THE EAST LINE OF THE CANADIAN PACIFIC RAILROAD RIGHT OF WAY; THENCE NORTH 02°42'45" WEST AND ALONG THE SAID EAST LINE, 2290.92 FEET; THENCE NORTH 89°55'52" EAST 1180.29 FEET TO THE POINT OF BEGINNING; EXCEPTING THEREFROM CERTIFIED SURVEY MAP NO. 2215 RECORDED IN THE KENOSHA COUNTY REGISTER OF DEEDS OFFICE ON SEPTEMBER 25, 2000 AS DOCUMENT NO. 1194773, AND LYING AND BEING IN THE VILLAGE OF PLEASANT PRAIRIE, COUNTY OF KENOSHA AND STATE OF WISCONSIN.

3. Phase C Property

PARCEL A:

OUTLOT 12 OF CERTIFIED SURVEY MAP NO. 1935 RECORDED IN THE KENOSHA COUNTY REGISTER OF DEEDS OFFICE ON DECEMBER 17, 1996, AS DOCUMENT NO. 1044596, BEING A RE-DIVISION OF PART OF PARCEL 29 OF CERTIFIED SURVEY MAP NO. 1529 AND LANDS IN THE NORTHEAST 1/4, NORTHWEST 1/4 AND SOUTHWEST 1/4 OF THE NORTHEAST 1/4 OF SECTION 28, TOWNSHIP 1 NORTH, RANGE 22 EAST, IN THE VILLAGE OF PLEASANT PRAIRIE, KENOSHA COUNTY, WISCONSIN.

PARCEL B:

PARCEL 82 OF CERTIFIED SURVEY MAP NO. 2008 RECORDED IN THE KENOSHA COUNTY REGISTER OF DEEDS OFFICE ON DECEMBER 23, 1997, AS DOCUMENT NO. 1080635; BEING A RE-DIVISION OF A PART OF PARCEL 29 OF CERTIFIED SURVEY MAP NO. 1529 AND LANDS IN THE SOUTHWEST QUARTER OF THE NORTHEAST QUARTER OF SECTION 28 AND NORTHWEST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 28, TOWNSHIP 1 NORTH, RANGE 22 EAST, IN THE VILLAGE OF PLEASANT PRAIRIE, KENOSHA COUNTY, WISCONSIN.

EXHIBIT B
PRELIMNARY DEVELOPMENT PLAN

FOR ILLUSTRATIVE PURPOSES ONLY, SITE PLANS FOR EACH SITE SUBJECT TO VILLAGE REVIEW AND APPROVAL

LakeView Corporate Park - TID #12

Land Site	Phase	Developable Acres	Proposed SF
Parcel 9 CSM #2273 92-4-122-272-0502	A	13.52	152,000
Lot 83-103 92-4-122-321-0165	B	20.07	300,500
Lot 60 92-4-122-281-0230, 92-4-122-281-0260	C	14.32	230,000



EXHIBIT B
PRELIMNARY DEVELOPMENT PLAN

FOR ILLUSTRATIVE PURPOSES ONLY, SITE PLANS FOR EACH SITE SUBJECT TO VILLAGE REVIEW AND APPROVAL

Phase A
Parcel 9 CSM #2273
92-4-122-272-0502

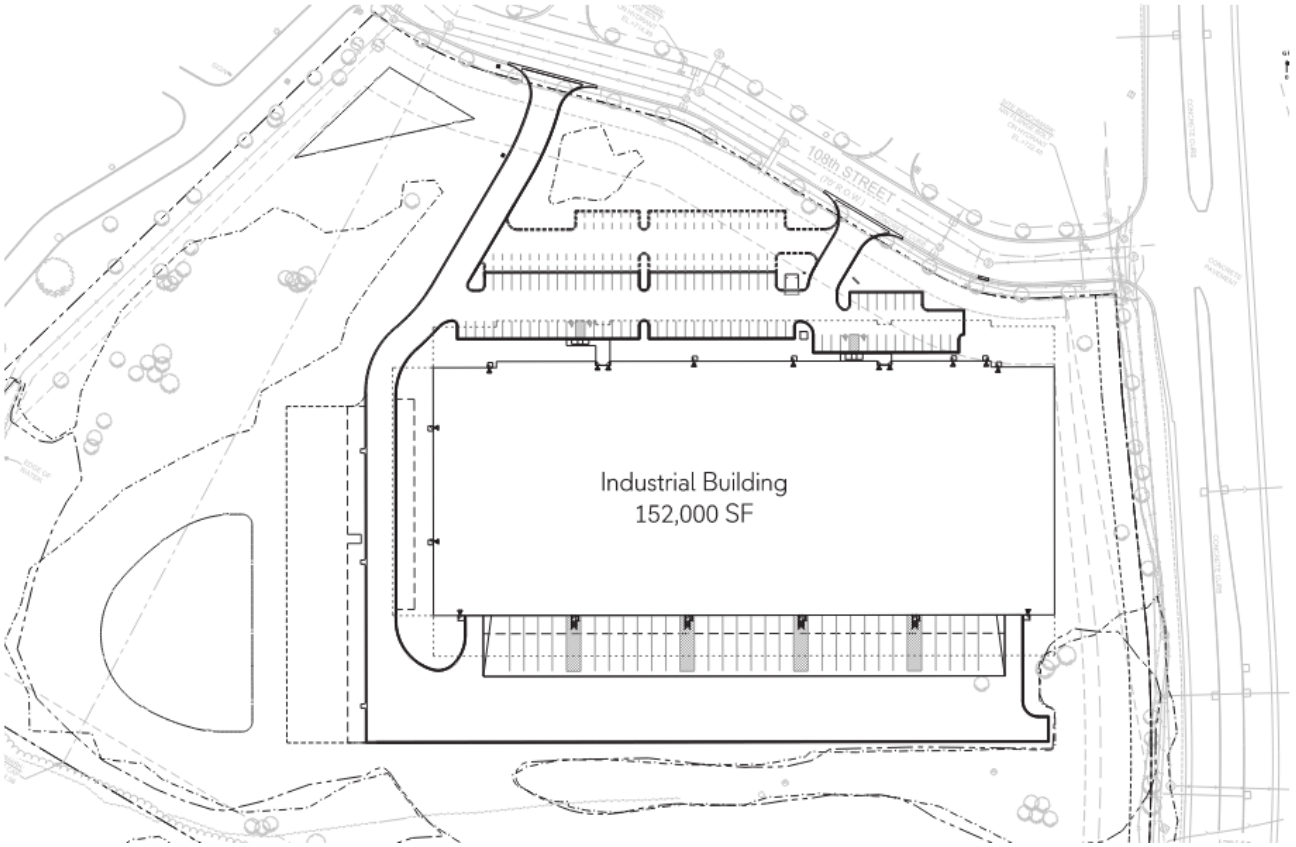


EXHIBIT B
PRELIMNARY DEVELOPMENT PLAN

FOR ILLUSTRATIVE PURPOSES ONLY, SITE PLANS FOR EACH SITE SUBJECT TO VILLAGE REVIEW AND APPROVAL

Phase B
Lot 83-103
92-4-122-321-0165

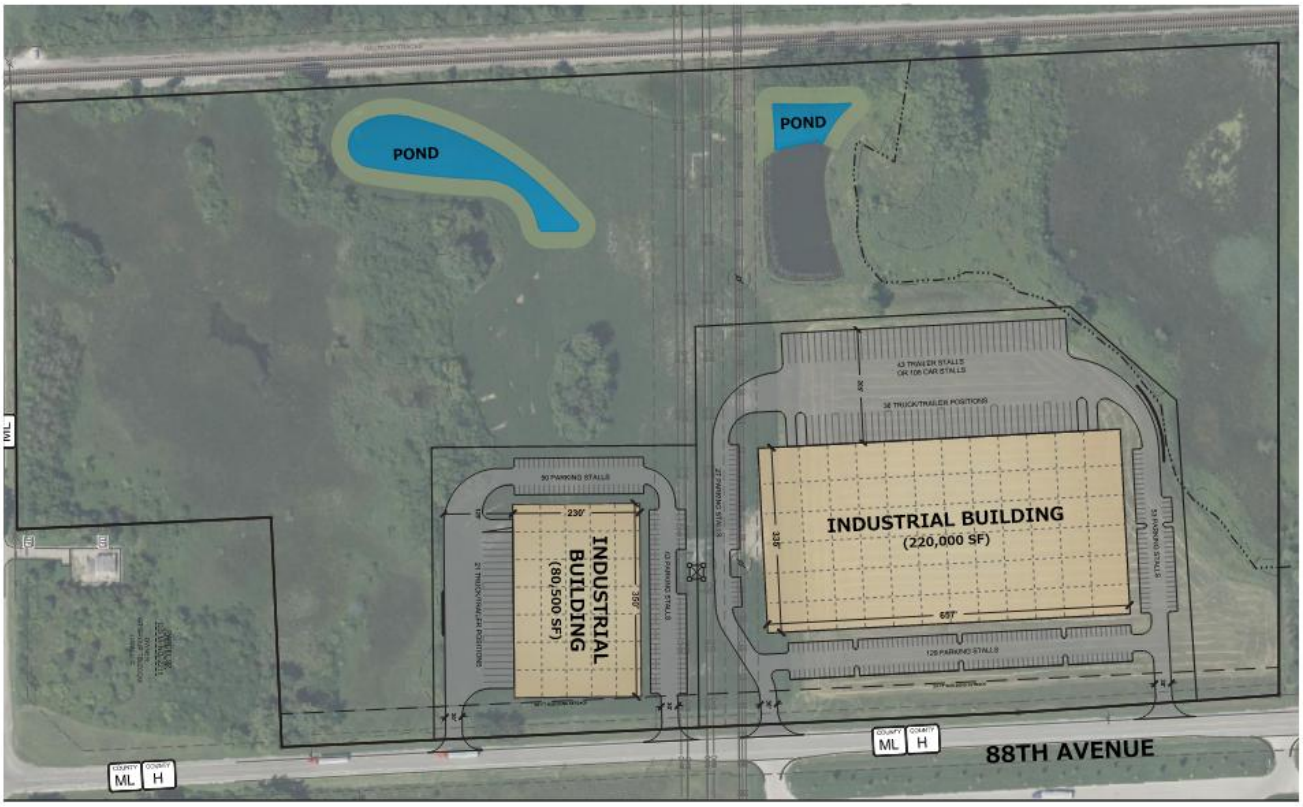


EXHIBIT B
PRELIMNARY DEVELOPMENT PLAN

FOR ILLUSTRATIVE PURPOSES ONLY, SITE PLANS FOR EACH SITE SUBJECT TO VILLAGE REVIEW AND APPROVAL

Phase C

Lot 60

92-4-122-281-0230, 92-4-122-281-0260

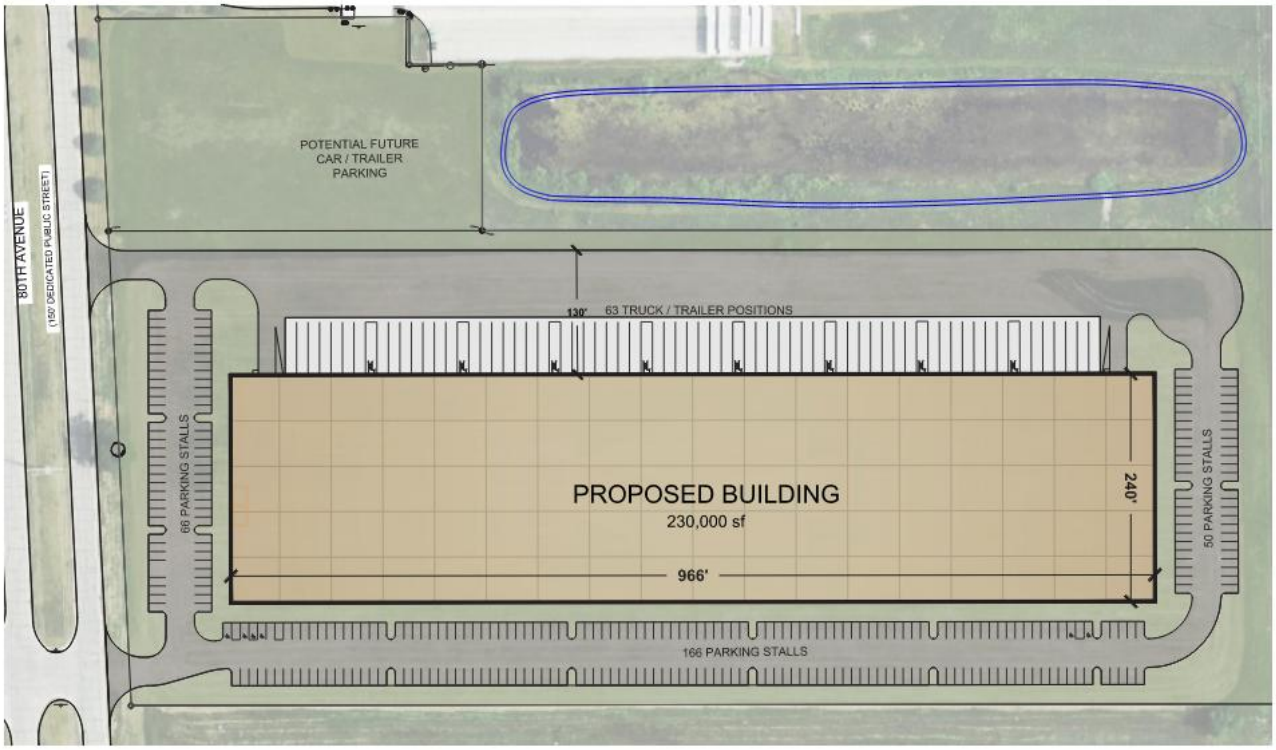


EXHIBIT C1
TAX AGREEMENT – PHASE A

TAX AGREEMENT
PHASE A

Document Number

Regarding the real estate located in the Village of Pleasant Prairie, Kenosha County, Wisconsin and as more particularly described on Attachment A attached hereto (the "Property").

This Tax Agreement is entered into by and between the Village of Pleasant Prairie and TI Investors of Pleasant Prairie Holding Company LLC, a Wisconsin limited liability company, included with and attached to the Development Agreement entered into by and between the same parties, with an effective date of _____, 2026.

Recording Area

Name and Return Address
Larry A. Konopacki
Stafford Rosenbaum LLP
P.O. Box 1784
Madison, WI 53701-1784

92-4-122-272-0502

Parcel Identification Number (PIN)

This document drafted by:

Larry A. Konopacki
Stafford Rosenbaum LLP
P.O. Box 1784
Madison, WI 53701-1784
lkonopacki@staffordlaw.com
608-259-2607

TAX AGREEMENT

THIS AGREEMENT is entered into as of the _____ day of_____, 2026 (the Agreement), by and between the Village of Pleasant Prairie, a Wisconsin municipal corporation (the "Village"), and TI Investors of Pleasant Prairie Holding Company LLC, a Wisconsin limited liability company (the "Developer" and, during its term of ownership of the Property, the "Owner").

RECITALS

A. The Village, and Developer have entered into a Development Agreement dated _____, 2026 ("Development Agreement"), relating to the development of property described in Exhibit A of the Development Agreement and as set forth in Attachment A hereto (the "Property") in the Village of Pleasant Prairie, Wisconsin.

B. Developer is the sole owner of the Property.

C. The Development Agreement provides that it shall not take effect unless an agreement relating to the preservation of the taxable status of the Property has been signed by the Village and the Developer.

D. Developer and the Village wish to enter into this Agreement concerning preservation of the taxable status of the Property.

E. The Village and other taxing jurisdictions have provided and shall continue to provide public health, safety, fire, and police protection, streets and street maintenance, snow removal, and other governmental services ("Municipal Services") that are funded by property taxes.

NOW, THEREFORE, in consideration of the Recitals, and the mutual promises, obligations and benefits provided under this Agreement and the Development Agreement, the receipt and adequacy of which are hereby acknowledged, Developer and the Village agree as follows:

1. **Recitals Incorporated.** The recitals stated above are incorporated in this Agreement by reference.

2. **Definitions in Development Agreement.** Terms that are capitalized in this Agreement that are not defined in this Agreement and that are defined in the Development Agreement shall have the meanings assigned to such terms by the Development Agreement.

3. **Representations and Warranties by Developer.** Developer represents and warrants that Developer: (1) is a limited liability company organized and existing under the laws of the State of Wisconsin; (2) has taken all actions necessary to enter into this Agreement; (3) has duly authorized the individual signers of this Agreement to do so; (4) is the sole owner of the Property, in fee simple; and (5) as of the date of this Agreement, Developer has not allowed any lien to be placed upon or taken against the Property, and Developer will not allow any lien to be placed upon or taken against the Property prior to the recording of this Agreement with the Register of Deeds for Kenosha County.

4. **Tax Status of the Property.** The Property shall be subject to property taxation until the closure of TID No. 12 and shall not be exempt from property taxation, in full or in part, except as required by law. The fee simple owner of record of the Property or any part of the Property (the "Owner") shall take all reasonable actions to assure that the Property shall not be exempt from property taxation, in full or in part, except as required by law. The Owner shall not submit any request or application for property tax exemption of the Property, in full or in part, challenge the status of the Property as fully subject to property taxation, or seek any ruling by a court or any statutory change that would entitle the Property to exemption, in full or part. Nothing herein shall be construed as preventing the Owner from conveying the Property, subject to the terms and conditions of this Agreement and the Development Agreement.

5. **Payment for Municipal Services If Property Becomes Tax Exempt.** If in any year during the Term of this Agreement (defined below) (the "Valuation Year") the Property is exempt from property taxation, in full or in part, the Owner shall pay the Village, as a payment for municipal services provided by the Village with respect to the Property ("Payment for Municipal Services"), the difference between (1) the amount of property taxes on the Property that the Village would have received for the Valuation Year if the Property were fully subject to property taxation, and (2) the amount of property taxes, if any, on the Property actually received by the Village for the Valuation Year. The Village shall send the Owner an invoice for the Payment for Municipal Services due. One-half of the Payment for Municipal Services shall be due on January 31 of the year after the Valuation Year. The balance of the Payment for Municipal Services shall be due on July 31 of the year after the Valuation Year. Each payment shall be deemed made when actually received by the Village. Any amount due that is not paid on time shall bear interest in the same manner and at the same rate as provided by law for unpaid property taxes. The Payment for Municipal Services shall constitute payment for municipal services provided with respect to the Property during the Valuation Year. The Village and the Owner acknowledge and agree that this Payment for Municipal Services would constitute a reasonable and appropriate means of fairly and reasonably compensating the Village for the municipal services provided during the Valuation Year.

6. **Calculation of Property Taxes as If Property Were Not Exempt.** If, for purposes of this Agreement, it becomes necessary to calculate the amount of property taxes

on the Property that the Village would have received if the Property were fully subject to property taxation, this amount shall be calculated as follows: (1) The fair market value of the Property as of January 1 of the Valuation Year shall be determined, in the same manner as provided by law for property that is fully taxable, by the Village Assessor or, if the Village Assessor is unable or unwilling to do so, by a competent and impartial appraiser selected by the Village in its sole discretion. (2) The fair market value, as so determined, shall be divided by the average assessment ratio for the Valuation Year for property in the Village, as determined by the Wisconsin Department of Revenue. (3) The resulting amount shall be multiplied by the mil rate at which taxable property in the Village is taxed to levy taxes for all taxing jurisdictions to which the Property is subject for the Valuation Year. That amount shall be deemed the amount of property taxes on the Property that the Village would have received for the Valuation Year if the Property were fully taxable.

7. **Special Assessment If Any Required Payment For Municipal Services Is Not Timely Made.** Any Payment for Municipal Services required under Section 5 of this Agreement that is not made when due shall entitle the Village to levy a special assessment against the Property for the amount due, plus interest. Owner hereby consents to the levy of any such special assessment. Any and all notice and hearing requirements which may be required under the law for such special assessment and all right and opportunity to otherwise object to or appeal such special assessment are hereby waived by the Owner, including pursuant to Wis. Stat. § 66.0703(7)(b). The Owner hereby waives all rights and opportunity to challenge the Village's legal authority to impose special assessments for this purpose. The Owner and the Village agree that such special assessment shall be a lien against the Property from the date of the levy. The Village is hereby expressly declared to be a beneficiary of such covenants and waivers and is entitled to enforce the same against the Owner and all successor owners of the Property.

8. **Indemnification.** The Owner shall indemnify the Village for all amounts of reasonable attorneys' fees and expenses and expert fees and expenses incurred in enforcing this Agreement.

9. **Remedies.** The Village shall have all remedies provided by this Agreement, and provided at law or in equity, necessary to cure any default or remedy any damages under this agreement. Remedies shall include, but are not limited to, special assessments under Section 7 of this Agreement, indemnification under Section 8 of this Agreement, and all other remedies available at law or in equity.

10. **Term of Agreement.** The term of this Agreement shall begin on the date the Agreement is signed by both parties and shall continue until twenty (20) years following the closure of TID No. 12 (the "Term") unless terminated by mutual written agreement of the parties to this Agreement.

11. **Successors and Assigns.** This Agreement shall run with the land and is binding on the successors and assigns of the parties, including, but not limited to, any subsequent owner of the Property, any part of the Property, or any real property interest in the Property or any part of the Property. If at any time the Property has more than one owner, any Payment for Municipal Services due under this Agreement for any Valuation Year shall be allocated among the owners jointly and severally. Notwithstanding the foregoing or anything else set forth herein, if Developer shall sell or otherwise convey its interest in the Property in accordance with the requirements under the Development Agreement, Developer shall be deemed released from all obligations hereunder and the Village shall look solely to successors in interest for the performance of all of the obligations imposed by this Agreement.

12. **Recording.** This Agreement shall be recorded with the Register of Deeds for Kenosha County as soon as practicable following execution by Developer and the Village.

13. **Entire Agreement; Amendments.** This Agreement encompasses the entire agreement of the parties regarding its subject matter. Any amendment hereto shall be effective only when it is made in writing and signed by all parties.

14. **Severability.** If any part of this Agreement is determined to be invalid or unenforceable, the rest of the Agreement shall remain in effect.

15. **Waiver.** No waiver of any breach of this Agreement shall be deemed a continuing waiver of that breach or a waiver of any other breach of this Agreement.

16. **Interpretation of Agreement.** The parties acknowledge that this Agreement is the product of joint negotiations. If any dispute arises concerning the interpretation of this Agreement, neither party shall be deemed the drafter of this Agreement for purposes of its interpretation.

17. **Notices.** Any notice required to be given under this Agreement shall be deemed given when personally delivered or mailed by U.S. mail, postage prepaid, return receipt requested, to the party at the address stated below or when actually received by the party, whichever is first. The addresses are:

If to Village: Village of Pleasant Prairie, Wisconsin
Attn: Robert Hanson, Community Development Director
9915 39th Avenue
Pleasant Prairie, WI 53158

With a copy to:

Larry A. Konopacki
Stafford Rosenbaum LLP
222 West Washington Avenue, Suite 900
Madison, WI 53701-1784

If to Developer: TI Investors of Pleasant Prairie Holding Company LLC
c/o Towne Realty, Inc.
710 N. Plankinton Ave., Ste. 1100
Milwaukee, WI 53203
Attn: Chad Navis
Phone number: (414) 274-2642

With a copy to:

Zilber Ltd.
710 N. Plankinton Avenue, Suite 1200
Milwaukee, WI 53203
Attn: Sandra J. DeLisle, Esq.
Phone number: (414) 274-2438

Addresses may be changed by notice given in the manner provided in this section.

18. **Governing Law.** This Agreement has been negotiated and signed in the State of Wisconsin and shall be governed, interpreted, and enforced in accordance with the laws of the United States and the State of Wisconsin.

19. **Personal Jurisdiction and Venue.** Personal jurisdiction and venue for any civil action commenced by either party arising out of this Agreement shall be deemed to be proper only if such action is commenced in Circuit Court for Kenosha County unless it is determined that such Court lacks jurisdiction. Developer hereby consents to personal jurisdiction in Kenosha County. Developer also expressly waives the right to bring such action in, or to remove such action to, any other court whether state or federal, unless it is determined that the Circuit Court for Kenosha County lacks jurisdiction.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first set forth above.

VILLAGE OF PLEASANT PRAIRIE

By:_____
Name: David J. Klimisch
Title: Village President

By:_____
Name: Jane C. Snell
Title: Village Clerk

ACKNOWLEDGMENT

STATE OF WISCONSIN

COUNTY OF KENOSHA

Personally came before me this _____ day of _____, 2026, the above-named _____ and _____, to me known to be the persons and officers who executed the foregoing instrument and acknowledged the same.

_____
Notary Public, State of Wisconsin
My Commission:_____

DEVELOPER:

TI INVESTORS OF PLEASANT PRAIRIE
HOLDING COMPANY LLC
By: Towne Realty, Inc., manager

By: _____
Name:
Title:

ACKNOWLEDGMENT

STATE OF WISCONSIN

COUNTY OF MILWAUKEE

Personally came before me this _____ day of _____, 2026, the above-named _____ to me known to be the person who executed the foregoing instrument and acknowledged the same.

_____
Notary Public, State of Wisconsin
My Commission:_____

ATTACHMENT A TO TAX AGREEMENT
PROPERTY DESCRIPTION

Parcel Nine (9) of CERTIFIED SURVEY MAP NO. 2273, being a redivision of Lot One (1) of Certified Survey Map No. 1971, located in part of the Southwest One-quarter (1/4) of the Northwest One-quarter (1/4) of Section Twenty-seven (27) and in the Southeast One-quarter (1/4) of the Northeast One-quarter (1/4) of Section Twenty-eight (28), in Township One (1) North, Range Twenty-two (22) East, in the Village of Pleasant Prairie, Kenosha County, Wisconsin, recorded in the Office of the Register of Deeds for Kenosha County on October 18, 2001 as Document No. 1239083.

Tax Key No. 92-4-122-272-0502
Address: 108th Street

EXHIBIT C2
TAX AGREEMENT – PHASE B

TAX AGREEMENT
PHASE B

Document Number

Regarding the real estate located in the Village of Pleasant Prairie, Kenosha County, Wisconsin and as more particularly described on Attachment A attached hereto (the "Property").

This Tax Agreement is entered into by and between the Village of Pleasant Prairie and TI Investors of Pleasant Prairie Holding Company LLC, a Wisconsin limited liability company, included with and attached to the Development Agreement entered into by and between the same parties, with an effective date of _____, 2026.

Recording Area

Name and Return Address
Larry A. Konopacki
Stafford Rosenbaum LLP
P.O. Box 1784
Madison, WI 53701-1784

92-4-122-321-0165
Parcel Identification Number (PIN)

This document drafted by:

Larry A. Konopacki
Stafford Rosenbaum LLP
P.O. Box 1784
Madison, WI 53701-1784
lkonopacki@staffordlaw.com
608-259-2607

TAX AGREEMENT

THIS AGREEMENT is entered into as of the _____ day of_____, 2026 (the Agreement), by and between the Village of Pleasant Prairie, a Wisconsin municipal corporation (the "Village"), and TI Investors of Pleasant Prairie Holding Company LLC, a Wisconsin limited liability company (the "Developer" and, during its term of ownership of the Property, the "Owner").

RECITALS

A. The Village, and Developer have entered into a Development Agreement dated _____, 2026 ("Development Agreement"), relating to the development of property described in Exhibit A of the Development Agreement and as set forth in Attachment A hereto (the "Property") in the Village of Pleasant Prairie, Wisconsin.

B. Developer is the sole owner of the Property.

C. The Development Agreement provides that it shall not take effect unless an agreement relating to the preservation of the taxable status of the Property has been signed by the Village and the Developer.

D. Developer and the Village wish to enter into this Agreement concerning preservation of the taxable status of the Property.

E. The Village and other taxing jurisdictions have provided and shall continue to provide public health, safety, fire, and police protection, streets and street maintenance, snow removal, and other governmental services ("Municipal Services") that are funded by property taxes.

NOW, THEREFORE, in consideration of the Recitals, and the mutual promises, obligations and benefits provided under this Agreement and the Development Agreement, the receipt and adequacy of which are hereby acknowledged, Developer and the Village agree as follows:

1. **Recitals Incorporated.** The recitals stated above are incorporated in this Agreement by reference.

2. **Definitions in Development Agreement.** Terms that are capitalized in this Agreement that are not defined in this Agreement and that are defined in the Development Agreement shall have the meanings assigned to such terms by the Development Agreement.

3. **Representations and Warranties by Developer.** Developer represents and warrants that Developer: (1) is a limited liability company organized and existing under the laws of the State of Wisconsin; (2) has taken all actions necessary to enter into this Agreement; (3) has duly authorized the individual signers of this Agreement to do so; (4) is the sole owner of the Property, in fee simple; and (5) as of the date of this Agreement, Developer has not allowed any lien to be placed upon or taken against the Property, and Developer will not allow any lien to be placed upon or taken against the Property prior to the recording of this Agreement with the Register of Deeds for Kenosha County.

4. **Tax Status of the Property.** The Property shall be subject to property taxation until the closure of TID No. 12 and shall not be exempt from property taxation, in full or in part, except as required by law. The fee simple owner of record of the Property or any part of the Property (the "Owner") shall take all reasonable actions to assure that the Property shall not be exempt from property taxation, in full or in part, except as required by law. The Owner shall not submit any request or application for property tax exemption of the Property, in full or in part, challenge the status of the Property as fully subject to property taxation, or seek any ruling by a court or any statutory change that would entitle the Property to exemption, in full or part. Nothing herein shall be construed as preventing the Owner from conveying the Property, subject to the terms and conditions of this Agreement and the Development Agreement.

5. **Payment for Municipal Services If Property Becomes Tax Exempt.** If in any year during the Term of this Agreement (defined below) (the "Valuation Year") the Property is exempt from property taxation, in full or in part, the Owner shall pay the Village, as a payment for municipal services provided by the Village with respect to the Property ("Payment for Municipal Services"), the difference between (1) the amount of property taxes on the Property that the Village would have received for the Valuation Year if the Property were fully subject to property taxation, and (2) the amount of property taxes, if any, on the Property actually received by the Village for the Valuation Year. The Village shall send the Owner an invoice for the Payment for Municipal Services due. One-half of the Payment for Municipal Services shall be due on January 31 of the year after the Valuation Year. The balance of the Payment for Municipal Services shall be due on July 31 of the year after the Valuation Year. Each payment shall be deemed made when actually received by the Village. Any amount due that is not paid on time shall bear interest in the same manner and at the same rate as provided by law for unpaid property taxes. The Payment for Municipal Services shall constitute payment for municipal services provided with respect to the Property during the Valuation Year. The Village and the Owner acknowledge and agree that this Payment for Municipal Services would constitute a reasonable and appropriate means of fairly and reasonably compensating the Village for the municipal services provided during the Valuation Year.

6. **Calculation of Property Taxes as If Property Were Not Exempt.** If, for purposes of this Agreement, it becomes necessary to calculate the amount of property taxes

on the Property that the Village would have received if the Property were fully subject to property taxation, this amount shall be calculated as follows: (1) The fair market value of the Property as of January 1 of the Valuation Year shall be determined, in the same manner as provided by law for property that is fully taxable, by the Village Assessor or, if the Village Assessor is unable or unwilling to do so, by a competent and impartial appraiser selected by the Village in its sole discretion. (2) The fair market value, as so determined, shall be divided by the average assessment ratio for the Valuation Year for property in the Village, as determined by the Wisconsin Department of Revenue. (3) The resulting amount shall be multiplied by the mil rate at which taxable property in the Village is taxed to levy taxes for all taxing jurisdictions to which the Property is subject for the Valuation Year. That amount shall be deemed the amount of property taxes on the Property that the Village would have received for the Valuation Year if the Property were fully taxable.

7. **Special Assessment If Any Required Payment For Municipal Services Is Not Timely Made.** Any Payment for Municipal Services required under Section 5 of this Agreement that is not made when due shall entitle the Village to levy a special assessment against the Property for the amount due, plus interest. Owner hereby consents to the levy of any such special assessment. Any and all notice and hearing requirements which may be required under the law for such special assessment and all right and opportunity to otherwise object to or appeal such special assessment are hereby waived by the Owner, including pursuant to Wis. Stat. § 66.0703(7)(b). The Owner hereby waives all rights and opportunity to challenge the Village's legal authority to impose special assessments for this purpose. The Owner and the Village agree that such special assessment shall be a lien against the Property from the date of the levy. The Village is hereby expressly declared to be a beneficiary of such covenants and waivers and is entitled to enforce the same against the Owner and all successor owners of the Property.

8. **Indemnification.** The Owner shall indemnify the Village for all amounts of reasonable attorneys' fees and expenses and expert fees and expenses incurred in enforcing this Agreement.

9. **Remedies.** The Village shall have all remedies provided by this Agreement, and provided at law or in equity, necessary to cure any default or remedy any damages under this agreement. Remedies shall include, but are not limited to, special assessments under Section 7 of this Agreement, indemnification under Section 8 of this Agreement, and all other remedies available at law or in equity.

10. **Term of Agreement.** The term of this Agreement shall begin on the date the Agreement is signed by both parties and shall continue until twenty (20) years following the closure of TID No. 12 (the "Term") unless terminated by mutual written agreement of the parties to this Agreement.

11. **Successors and Assigns.** This Agreement shall run with the land and is binding on the successors and assigns of the parties, including, but not limited to, any subsequent owner of the Property, any part of the Property, or any real property interest in the Property or any part of the Property. If at any time the Property has more than one owner, any Payment for Municipal Services due under this Agreement for any Valuation Year shall be allocated among the owners jointly and severally. Notwithstanding the foregoing or anything else set forth herein, if Developer shall sell or otherwise convey its interest in the Property in accordance with the requirements under the Development Agreement, Developer shall be deemed released from all obligations hereunder and the Village shall look solely to successors in interest for the performance of all of the obligations imposed by this Agreement.

12. **Recording.** This Agreement shall be recorded with the Register of Deeds for Kenosha County as soon as practicable following execution by Developer and the Village.

13. **Entire Agreement; Amendments.** This Agreement encompasses the entire agreement of the parties regarding its subject matter. Any amendment hereto shall be effective only when it is made in writing and signed by all parties.

14. **Severability.** If any part of this Agreement is determined to be invalid or unenforceable, the rest of the Agreement shall remain in effect.

15. **Waiver.** No waiver of any breach of this Agreement shall be deemed a continuing waiver of that breach or a waiver of any other breach of this Agreement.

16. **Interpretation of Agreement.** The parties acknowledge that this Agreement is the product of joint negotiations. If any dispute arises concerning the interpretation of this Agreement, neither party shall be deemed the drafter of this Agreement for purposes of its interpretation.

17. **Notices.** Any notice required to be given under this Agreement shall be deemed given when personally delivered or mailed by U.S. mail, postage prepaid, return receipt requested, to the party at the address stated below or when actually received by the party, whichever is first. The addresses are:

If to Village: Village of Pleasant Prairie, Wisconsin
Attn: Robert Hanson, Community Development Director
9915 39th Avenue
Pleasant Prairie, WI 53158

With a copy to:

Larry A. Konopacki
Stafford Rosenbaum LLP
222 West Washington Avenue, Suite 900
Madison, WI 53701-1784

If to Developer: TI Investors of Pleasant Prairie Holding Company LLC
c/o Towne Realty, Inc.
710 N. Plankinton Ave., Ste. 1100
Milwaukee, WI 53203
Attn: Chad Navis
Phone number: (414) 274-2642

With a copy to:

Zilber Ltd.
710 N. Plankinton Avenue, Suite 1200
Milwaukee, WI 53203
Attn: Sandra J. DeLisle, Esq.
Phone number: (414) 274-2438

Addresses may be changed by notice given in the manner provided in this section.

18. **Governing Law.** This Agreement has been negotiated and signed in the State of Wisconsin and shall be governed, interpreted, and enforced in accordance with the laws of the United States and the State of Wisconsin.

19. **Personal Jurisdiction and Venue.** Personal jurisdiction and venue for any civil action commenced by either party arising out of this Agreement shall be deemed to be proper only if such action is commenced in Circuit Court for Kenosha County unless it is determined that such Court lacks jurisdiction. Developer hereby consents to personal jurisdiction in Kenosha County. Developer also expressly waives the right to bring such action in, or to remove such action to, any other court whether state or federal, unless it is determined that the Circuit Court for Kenosha County lacks jurisdiction.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first set forth above.

VILLAGE OF PLEASANT PRAIRIE

By:_____
Name: David J. Klimisch
Title: Village President

By:_____
Name: Jane C. Snell
Title: Village Clerk

ACKNOWLEDGMENT

STATE OF WISCONSIN

COUNTY OF KENOSHA

Personally came before me this _____ day of _____, 2026, the above-named _____ and _____, to me known to be the persons and officers who executed the foregoing instrument and acknowledged the same.

_____
Notary Public, State of Wisconsin
My Commission:_____

DEVELOPER:

TI INVESTORS OF PLEASANT PRAIRIE
HOLDING COMPANY LLC
By: Towne Realty, Inc., manager

By: _____
Name:
Title:

ACKNOWLEDGMENT

STATE OF WISCONSIN

COUNTY OF MILWAUKEE

Personally came before me this _____ day of _____, 2026, the above-named _____ to me known to be the person who executed the foregoing instrument and acknowledged the same.

_____
Notary Public, State of Wisconsin
My Commission:_____

ATTACHMENT A TO TAX AGREEMENT
PROPERTY DESCRIPTION

ALL THAT PART OF THE EAST HALF OF THE NORTHEAST QUARTER OF SECTION 32, TOWNSHIP 1 NORTH, RANGE 22 EAST OF THE FOURTH PRINCIPAL MERIDIAN, BOUNDED AND DESCRIBED AS FOLLOWS:

COMMENCING AT THE NORTHEAST CORNER OF SAID SECTION 32; THENCE SOUTH 89°55'52" WEST AND ALONG THE NORTH LINE OF THE NORTHEAST QUARTER OF SAID SECTION 32, 46.66 FEET TO THE WEST LINE OF COUNTY TRUNK HIGHWAY "H" RIGHT OF WAY; THENCE SOUTH 02°04'46" EAST ALONG THE SAID WEST LINE, 327.36 FEET TO THE POINT OF BEGINNING OF THE FOLLOWING DESCRIPTION; THENCE SOUTH 03°52'53" EAST AND ALONG THE WEST LINE OF COUNTY TRUNK HIGHWAY "H" RIGHT OF WAY, 473.83 FEET; THENCE SOUTH 02°40'20" EAST AND ALONG THE SAID WEST LINE, 1684.21 FEET; THENCE SOUTH 43°28'29" WEST, 175.89 FEET TO THE NORTH LINE OF COUNTY TRUNK HIGHWAY "ML" RIGHT OF WAY; THENCE SOUTH 89°37'19" WEST AND ALONG THE SAID NORTH LINE, 1061.47 FEET TO THE EAST LINE OF THE CANADIAN PACIFIC RAILROAD RIGHT OF WAY; THENCE NORTH 02°42'45" WEST AND ALONG THE SAID EAST LINE, 2290.92 FEET; THENCE NORTH 89°55'52" EAST 1180.29 FEET TO THE POINT OF BEGINNING; EXCEPTING THEREFROM CERTIFIED SURVEY MAP NO. 2215 RECORDED IN THE KENOSHA COUNTY REGISTER OF DEEDS OFFICE ON SEPTEMBER 25, 2000 AS DOCUMENT NO. 1194773, AND LYING AND BEING IN THE VILLAGE OF PLEASANT PRAIRIE, COUNTY OF KENOSHA AND STATE OF WISCONSIN.

EXHIBIT C3
TAX AGREEMENT – PHASE C

TAX AGREEMENT
PHASE C

Document Number

Regarding the real estate located in the Village of Pleasant Prairie, Kenosha County, Wisconsin and as more particularly described on Attachment A attached hereto (the "Property").

This Tax Agreement is entered into by and between the Village of Pleasant Prairie and TI Investors of Pleasant Prairie Holding Company LLC, a Wisconsin limited liability company, included with and attached to the Development Agreement entered into by and between the same parties, with an effective date of _____, 2026.

Recording Area

Name and Return Address
Larry A. Konopacki
Stafford Rosenbaum LLP
P.O. Box 1784
Madison, WI 53701-1784

92-4-122-281-02300 and 92-4-122-281-0260
Parcel Identification Number (PIN)

This document drafted by:

Larry A. Konopacki
Stafford Rosenbaum LLP
P.O. Box 1784
Madison, WI 53701-1784
lkonopacki@staffordlaw.com
608-259-2607

TAX AGREEMENT

THIS AGREEMENT is entered into as of the _____ day of_____, 2026 (the Agreement), by and between the Village of Pleasant Prairie, a Wisconsin municipal corporation (the "Village"), and TI Investors of Pleasant Prairie Holding Company LLC, a Wisconsin limited liability company (the "Developer" and, during its term of ownership of the Property, the "Owner").

RECITALS

A. The Village, and Developer have entered into a Development Agreement dated _____, 2026 ("Development Agreement"), relating to the development of property described in Exhibit A of the Development Agreement and as set forth in Attachment A hereto (the "Property") in the Village of Pleasant Prairie, Wisconsin.

B. Developer is the sole owner of the Property.

C. The Development Agreement provides that it shall not take effect unless an agreement relating to the preservation of the taxable status of the Property has been signed by the Village and the Developer.

D. Developer and the Village wish to enter into this Agreement concerning preservation of the taxable status of the Property.

E. The Village and other taxing jurisdictions have provided and shall continue to provide public health, safety, fire, and police protection, streets and street maintenance, snow removal, and other governmental services ("Municipal Services") that are funded by property taxes.

NOW, THEREFORE, in consideration of the Recitals, and the mutual promises, obligations and benefits provided under this Agreement and the Development Agreement, the receipt and adequacy of which are hereby acknowledged, Developer and the Village agree as follows:

1. **Recitals Incorporated.** The recitals stated above are incorporated in this Agreement by reference.

2. **Definitions in Development Agreement.** Terms that are capitalized in this Agreement that are not defined in this Agreement and that are defined in the Development Agreement shall have the meanings assigned to such terms by the Development Agreement.

3. **Representations and Warranties by Developer.** Developer represents and warrants that Developer: (1) is a limited liability company organized and existing under the laws of the State of Wisconsin; (2) has taken all actions necessary to enter into this Agreement; (3) has duly authorized the individual signers of this Agreement to do so; (4) is the sole owner of the Property, in fee simple; and (5) as of the date of this Agreement, Developer has not allowed any lien to be placed upon or taken against the Property, and Developer will not allow any lien to be placed upon or taken against the Property prior to the recording of this Agreement with the Register of Deeds for Kenosha County.

4. **Tax Status of the Property.** The Property shall be subject to property taxation until the closure of TID No. 12 and shall not be exempt from property taxation, in full or in part, except as required by law. The fee simple owner of record of the Property or any part of the Property (the "Owner") shall take all reasonable actions to assure that the Property shall not be exempt from property taxation, in full or in part, except as required by law. The Owner shall not submit any request or application for property tax exemption of the Property, in full or in part, challenge the status of the Property as fully subject to property taxation, or seek any ruling by a court or any statutory change that would entitle the Property to exemption, in full or part. Nothing herein shall be construed as preventing the Owner from conveying the Property, subject to the terms and conditions of this Agreement and the Development Agreement.

5. **Payment for Municipal Services If Property Becomes Tax Exempt.** If in any year during the Term of this Agreement (defined below) (the "Valuation Year") the Property is exempt from property taxation, in full or in part, the Owner shall pay the Village, as a payment for municipal services provided by the Village with respect to the Property ("Payment for Municipal Services"), the difference between (1) the amount of property taxes on the Property that the Village would have received for the Valuation Year if the Property were fully subject to property taxation, and (2) the amount of property taxes, if any, on the Property actually received by the Village for the Valuation Year. The Village shall send the Owner an invoice for the Payment for Municipal Services due. One-half of the Payment for Municipal Services shall be due on January 31 of the year after the Valuation Year. The balance of the Payment for Municipal Services shall be due on July 31 of the year after the Valuation Year. Each payment shall be deemed made when actually received by the Village. Any amount due that is not paid on time shall bear interest in the same manner and at the same rate as provided by law for unpaid property taxes. The Payment for Municipal Services shall constitute payment for municipal services provided with respect to the Property during the Valuation Year. The Village and the Owner acknowledge and agree that this Payment for Municipal Services would constitute a reasonable and appropriate means of fairly and reasonably compensating the Village for the municipal services provided during the Valuation Year.

6. **Calculation of Property Taxes as If Property Were Not Exempt.** If, for purposes of this Agreement, it becomes necessary to calculate the amount of property taxes on the Property that the Village would have received if the Property were fully subject to property taxation, this amount shall be calculated as follows: (1) The fair market value of the Property as of January 1 of the Valuation Year shall be determined, in the same manner as provided by law for property that is fully taxable, by the Village Assessor or, if the Village Assessor is unable or unwilling to do so, by a competent and impartial appraiser selected by the Village in its sole discretion. (2) The fair market value, as so determined, shall be divided by the average assessment ratio for the Valuation Year for property in the Village, as determined by the Wisconsin Department of Revenue. (3) The resulting amount shall be multiplied by the mil rate at which taxable property in the Village is taxed to levy taxes for all taxing jurisdictions to which the Property is subject for the Valuation Year. That amount shall be deemed the amount of property taxes on the Property that the Village would have received for the Valuation Year if the Property were fully taxable.

7. **Special Assessment If Any Required Payment For Municipal Services Is Not Timely Made.** Any Payment for Municipal Services required under Section 5 of this Agreement that is not made when due shall entitle the Village to levy a special assessment against the Property for the amount due, plus interest. Owner hereby consents to the levy of any such special assessment. Any and all notice and hearing requirements which may be required under the law for such special assessment and all right and opportunity to otherwise object to or appeal such special assessment are hereby waived by the Owner, including pursuant to Wis. Stat. § 66.0703(7)(b). The Owner hereby waives all rights and opportunity to challenge the Village's legal authority to impose special assessments for this purpose. The Owner and the Village agree that such special assessment shall be a lien against the Property from the date of the levy. The Village is hereby expressly declared to be a beneficiary of such covenants and waivers and is entitled to enforce the same against the Owner and all successor owners of the Property.

8. **Indemnification.** The Owner shall indemnify the Village for all amounts of reasonable attorneys' fees and expenses and expert fees and expenses incurred in enforcing this Agreement.

9. **Remedies.** The Village shall have all remedies provided by this Agreement, and provided at law or in equity, necessary to cure any default or remedy any damages under this agreement. Remedies shall include, but are not limited to, special assessments under Section 7 of this Agreement, indemnification under Section 8 of this Agreement, and all other remedies available at law or in equity.

10. **Term of Agreement.** The term of this Agreement shall begin on the date the Agreement is signed by both parties and shall continue until twenty (20) years

following the closure of TID No. 12 (the "Term") unless terminated by mutual written agreement of the parties to this Agreement.

11. **Successors and Assigns.** This Agreement shall run with the land and is binding on the successors and assigns of the parties, including, but not limited to, any subsequent owner of the Property, any part of the Property, or any real property interest in the Property or any part of the Property. If at any time the Property has more than one owner, any Payment for Municipal Services due under this Agreement for any Valuation Year shall be allocated among the owners jointly and severally. Notwithstanding the foregoing or anything else set forth herein, if Developer shall sell or otherwise convey its interest in the Property in accordance with the requirements under the Development Agreement, Developer shall be deemed released from all obligations hereunder and the Village shall look solely to successors in interest for the performance of all of the obligations imposed by this Agreement.

12. **Recording.** This Agreement shall be recorded with the Register of Deeds for Kenosha County as soon as practicable following execution by Developer and the Village.

13. **Entire Agreement; Amendments.** This Agreement encompasses the entire agreement of the parties regarding its subject matter. Any amendment hereto shall be effective only when it is made in writing and signed by all parties.

14. **Severability.** If any part of this Agreement is determined to be invalid or unenforceable, the rest of the Agreement shall remain in effect.

15. **Waiver.** No waiver of any breach of this Agreement shall be deemed a continuing waiver of that breach or a waiver of any other breach of this Agreement.

16. **Interpretation of Agreement.** The parties acknowledge that this Agreement is the product of joint negotiations. If any dispute arises concerning the interpretation of this Agreement, neither party shall be deemed the drafter of this Agreement for purposes of its interpretation.

17. **Notices.** Any notice required to be given under this Agreement shall be deemed given when personally delivered or mailed by U.S. mail, postage prepaid, return receipt requested, to the party at the address stated below or when actually received by the party, whichever is first. The addresses are:

If to Village: Village of Pleasant Prairie, Wisconsin
Attn: Robert Hanson, Community Development Director
9915 39th Avenue
Pleasant Prairie, WI 53158

With a copy to:

Larry A. Konopacki
Stafford Rosenbaum LLP
222 West Washington Avenue, Suite 900
Madison, WI 53701-1784

If to Developer: TI Investors of Pleasant Prairie Holding Company LLC
c/o Towne Realty, Inc.
710 N. Plankinton Ave., Ste. 1100
Milwaukee, WI 53203
Attn: Chad Navis
Phone number: (414) 274-2642

With a copy to:

Zilber Ltd.
710 N. Plankinton Avenue, Suite 1200
Milwaukee, WI 53203
Attn: Sandra J. DeLisle, Esq.
Phone number: (414) 274-2438

Addresses may be changed by notice given in the manner provided in this section.

18. **Governing Law.** This Agreement has been negotiated and signed in the State of Wisconsin and shall be governed, interpreted, and enforced in accordance with the laws of the United States and the State of Wisconsin.

19. **Personal Jurisdiction and Venue.** Personal jurisdiction and venue for any civil action commenced by either party arising out of this Agreement shall be deemed to be proper only if such action is commenced in Circuit Court for Kenosha County unless it is determined that such Court lacks jurisdiction. Developer hereby consents to personal jurisdiction in Kenosha County. Developer also expressly waives the right to bring such

action in, or to remove such action to, any other court whether state or federal, unless it is determined that the Circuit Court for Kenosha County lacks jurisdiction.

[SIGNATURES ON FOLLOWING PAGES]

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first set forth above.

VILLAGE OF PLEASANT PRAIRIE

By:_____
Name: David J. Klimisch
Title: Village President

By:_____
Name: Jane C. Snell
Title: Village Clerk

ACKNOWLEDGMENT

STATE OF WISCONSIN

COUNTY OF KENOSHA

Personally came before me this _____ day of _____, 2026, the above-named _____ and _____, to me known to be the persons and officers who executed the foregoing instrument and acknowledged the same.

_____
Notary Public, State of Wisconsin
My Commission:_____

DEVELOPER:

TI INVESTORS OF PLEASANT PRAIRIE
HOLDING COMPANY LLC
By: Towne Realty, Inc., manager

By: _____
Name:
Title:

ACKNOWLEDGMENT

STATE OF WISCONSIN

COUNTY OF MILWAUKEE

Personally came before me this _____ day of _____, 2026, the above-named _____ to me known to be the person who executed the foregoing instrument and acknowledged the same.

_____
Notary Public, State of Wisconsin
My Commission:_____

ATTACHMENT A TO TAX AGREEMENT
PROPERTY DESCRIPTION

PARCEL A:

OUTLOT 12 OF CERTIFIED SURVEY MAP NO. 1935 RECORDED IN THE KENOSHA COUNTY REGISTER OF DEEDS OFFICE ON DECEMBER 17, 1996, AS DOCUMENT NO. 1044596, BEING A RE-DIVISION OF PART OF PARCEL 29 OF CERTIFIED SURVEY MAP NO. 1529 AND LANDS IN THE NORTHEAST 1/4, NORTHWEST 1/4 AND SOUTHWEST 1/4 OF THE NORTHEAST 1/4 OF SECTION 28, TOWNSHIP 1 NORTH, RANGE 22 EAST, IN THE VILLAGE OF PLEASANT PRAIRIE, KENOSHA COUNTY, WISCONSIN.

PARCEL B:

PARCEL 82 OF CERTIFIED SURVEY MAP NO. 2008 RECORDED IN THE KENOSHA COUNTY REGISTER OF DEEDS OFFICE ON DECEMBER 23, 1997, AS DOCUMENT NO. 1080635; BEING A RE-DIVISION OF A PART OF PARCEL 29 OF CERTIFIED SURVEY MAP NO. 1529 AND LANDS IN THE SOUTHWEST QUARTER OF THE NORTHEAST QUARTER OF SECTION 28 AND NORTHWEST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 28, TOWNSHIP 1 NORTH, RANGE 22 EAST, IN THE VILLAGE OF PLEASANT PRAIRIE, KENOSHA COUNTY, WISCONSIN.

EXHIBIT D
PUBLIC WATERMAIN INFRASTRUCTURE PLANS

EXHIBIT D1
Itemized Financial Security Cost Breakdown Schedule

EXHIBIT D2
Copy of the Financial Security Instrument for the Public Watermain Project